

THE LAW OF THE LAND

Land assigned to the poor for their upliftment is being taken back from illegal occupants but many seem to be determined to stay put

■ By Amarnath K. Menon

For years, Andhra Pradesh has been in the forefront on distribution of government land among the poor, aimed at alleviating poverty and generating jobs. In the last 55 years, the state has distributed over 48 lakh acre of land out of nearly 150 lakh acre distributed throughout the country. Ironically, it is also the state where the Left parties, allies of the ruling Congress-led UPA at the Centre have been running an orchestrated campaign for the past eight weeks, *Bhu Poratam* (land struggle in Telugu)—squatting on vacant land and demanding that it be allotted to the poor.

It is surprising that the Left chose to launch the agitation several months after the Congress Government of Chief Minister Y.S. Rajasekhara Reddy, in a bold initiative, amended the law—the Andhra Pradesh (Prohibition of Transfers) of Assigned Lands Act—to recapture government land that was encroached upon or sold by unscrupulous occupants and hand it over to the landless poor. An exercise of enumeration that had been going on for the past four months revealed that about 4,13,000 acre have changed hands and it is estimated that by the end of July, the total acreage is likely to exceed 5 lakh. The village-wise survey will identify land in the possession of illegal occupants or others, and reclaim it for redistribution to the poor.

Many of the unwitting buyers of assigned land and unscrupulous encroachers are occupying prime land in Hyderabad and the Ranga Reddy district skirting the city, as well as other urban clusters across the state. Many have forcibly occupied land meant for the poor. While piloting the amendment of the laws last year, Chief Minister Reddy had set an example by surrendering 310 acre held by his family after surveys revealed that

this land was originally meant for the poor. In a swift move, the Government also amended the law to prohibit transfer of such land by empowering itself to reclaim it after punishing those who illegally occupied it, even if it was bought and registered legally. "The land is intended to empower the poor and raise their status and not merely offer them an economic opportunity," explained the state Revenue Minister Dharmana Prasada Rao.

After amending the law, the Government set a deadline of April 29 for illegal occupants to surrender the land voluntarily, even if they had made substantial investments to raise buildings and factories on it. The Government also offered unsuspecting buyers, who had bought land unaware that it was earlier earmarked for distribution to the poor, the option of surrendering it. Since the move began, only 1,936 persons have surrendered 4,349.53 acre voluntarily.

But many others are holding out, forcing the revenue authorities in the state's 23 districts to slap recovery notices on the illegal occupants. Among them is former Tamil Nadu chief minister J. Jayalalithaa, owner of JJ Grape Gardens in the northern suburbs of Hyderabad, where a seven-acre vineyard stands on land assigned for distribution. But the AIADMK supremo alleges she is being targeted because of her **CARETAKER: Revenue minister Rao wants to empower the poor**



party's close ties with the Opposition, Telugu Desam Party (TDP) and its chief, N. Chandrababu Naidu. "Innumerable cases have been foisted on me since 1996. So far, I have been acquitted in 12 cases and declared innocent by the courts. I will continue fighting these cases," says Jayalalithaa. Adds Naidu, "The Government claims it was land assigned for the poor. But she bought the land 40 years ago, even before the Land Assignment Act of 1977 had been enforced. This is nothing but political vendetta."

Rao says the seemingly harsh decision of the Government in taking over the land is to be seen in the larger perspective of the Congress's commitment to improving the quality of life in the rural areas. He clarifies that the